

Calderwood Partners LLC

www.calderwoodpartners.com

April 12, 2009

Joseph Wallace
Chief Financial Officer
Carroll, Merritt and Williams

Dear Mr. Wallace:

This letter records the terms on which our firm will act for Carroll, Merritt and Williams in the integration work that follows the recent merger, and, once you have countersigned it, it will stand as the agreement between us. I have set it down in plain terms, so that it reads as an account of what we discussed together rather than as an instrument to be construed against either of us, and I would ask you to read it against that conversation and to tell me, before you sign, if any part of it sits at odds with how you remember what was said.

The Work We Will Undertake

We will help the leadership of Carroll, Merritt and Williams bring the two organizations that the merger has joined into a single operating whole, and we will do so in the deliberate sequence that such work rewards: first understanding how each side runs today, then agreeing where the combined business ought to run differently, and only then setting the changes in motion in an order that the organization can absorb without losing a step. Our concern throughout is that the integration deliver the value the transaction was meant to create, and that it do so without unsettling the parts of either business that are already working well.

The engagement covers the operating model, the near-term cost questions that a combination of this kind always raises, and a practical plan for the first months of the joined enterprise, and it extends to our counsel on the decisions those questions force. It does not extend to the running of the company, which remains yours, nor to legal, tax, or accounting advice, on which you should continue to rely on the advisers who ordinarily provide it; where our work touches those matters, what we offer is a considered view and not a professional opinion in their place.

Our way of working is unhurried and, I hope, plain in its manner. We begin by listening, to your leadership and to the people on both sides of the merger who already carry a view of how the work is done, before we commit any

recommendation to paper; we then set down the small number of decisions that the integration truly turns on, and we build the rest of the plan outward from those. When the ground moves under the work, as it does in every combination of two going concerns, we will come back to you and adjust the plan with you and not around you.

Who Will Carry the Work

Jason Torres, a Principal of the firm, will own the relationship with you and will be the person to whom you bring any question of substance; he is accustomed to telling a client what the evidence shows and not what is easiest to hear, and you should expect that of him. Working to him, Daniel Leach and Mary Parker will carry much of the day-to-day analysis, Daniel on the operating and cost data and Mary on the background research that grounds our recommendations, and each of them will see to it that any figure we place in front of you can be traced back to where it came from.

I will keep my own hand on the engagement, particularly at the points where a judgment must be made about how far a recommendation can be pressed before it outruns what we actually know, and nothing of consequence will leave the firm under our name without my having read it first. You are welcome to reach me directly at any time, though for most matters Jason Torres will be the quicker route to an answer.

Fee and Invoicing

Our fee for the engagement as I have described it is \$54,500, which covers the time of the people named above through the expected close of the work. We will render invoices against that amount as the engagement proceeds, and each will be payable within thirty days of your receipt of it. The fee covers our people and their time and not the incidental costs of the work, such as travel or the reproduction of materials, which we will incur only with your agreement and pass through to you at what they cost us; should the shape of the work change materially from what this letter contemplates, I will raise the question of the fee with you and we will settle it together before the further work begins, so that nothing reaches you on an invoice as a surprise.

Term and Termination

The engagement begins on April 22, 2009 and is expected to run for something on the order of four months, though we will treat it as complete when the work is genuinely done and not merely when the calendar has turned. Either of us may

bring it to an end on fourteen days' written notice to the other; if you choose to do so, you will owe us for the work properly performed to that point and for any costs already committed on your behalf, and for nothing beyond that.

Confidentiality

Everything we learn about Carroll, Merritt and Williams and the businesses it has combined we will hold in confidence and use only for the purposes of this engagement. That obligation binds every member of our team, it survives the end of our work, and it covers the fact of our involvement as fully as it covers its substance. We ask the same of you in respect of the methods and the written materials we share with you, which represent the firm's own way of working.

Limitation of Liability

We will perform the work with the care and skill you are entitled to expect of a firm engaged for it, and we stand behind what we do. We do not, however, control the decisions that the leadership of the combined company will ultimately take, nor the conditions of the markets in which it operates, and so, save to the extent the law does not permit such a limit, our liability to you arising out of this engagement is limited to the fees paid under it.

Governing Law

This agreement is governed by the law of the state in which our firm is established, and any dispute arising under it will be determined by the courts of that state. Should any single provision of this letter be held unenforceable, the remainder of it will continue in force, unaffected.

If this letter reflects the understanding we reached, I would be grateful if you would sign one copy where indicated below and return it to us, keeping the other for your own file. Once your signed copy is in our hands, Daniel Leach will write to you to fix the first meetings and the initial requests for information, so that we can begin without delay.

Julie Ramsey

Managing Principal

Date: April 12, 2009

Joseph Wallace

Chief Financial Officer, Carroll, Merritt and Williams

Date: April 12, 2009